

[1/12] IDENTITY AND EVOLUTION

1809 Sweden: ombudsman idea

- > 1966 First ARC: Lokpal at Union + Lokayuktas in States
- > repeated parliamentary Bills from 1968
- > 2011 public anti-corruption movement adds political pressure
- > Lokpal and Lokayuktas Act, 2013
- > assent 1 Jan 2014; commencement 16 Jan 2014

LEGAL IDENTITY: statutory, corruption-specific, not constitutional

ANSWER LINE: Lokpal is a process authority, not police, prosecutor and judge combined.

[2/12] COMPOSITION, ELIGIBILITY AND REPRESENTATION

LOKPAL = Chairperson + not more than 8 Members

Members: 50% Judicial Members

Members: not less than 50% from SC/ST/OBC/minorities/women

Chair: CJI/former CJI, SC judge/former SC judge, or qualified eminent person

Judicial Member: SC judge/former SC judge or HC Chief Justice/former HC CJ

Other Member: impeccable integrity + outstanding ability + ≥ 25 years listed expertise

Minimum age: 45

TRAP: both percentage rules use Members, not Chairperson-plus-Members.

[3/12] SELECTION, APPOINTMENT, TERM AND REMOVAL

Selection Committee:

PM (chair) | Lok Sabha Speaker | Lok Sabha LoP | CJI/nominee | eminent jurist

Search Committee: ≥ 7 experts; diversity floor; panel is not exclusive

President appoints by warrant

Term: 5 years or age 70, whichever earlier; no ordinary reappointment

Member -> Chair allowed only within aggregate 5 years

Removal for misbehaviour: 100 MPs petition -> President reference -> SC inquiry

Direct grounds: insolvency | paid outside work | qualifying infirmity

COMMON CAUSE (2017): vacancy did not make the Act unworkable; no invented substitute seat.

[4/12] PERSONS AND ENTITIES WITHIN SECTION 14

PM/former PM -> special filters

Union Ministers/former Ministers -> covered

MPs/former MPs -> covered, subject to Article 105(2)

Groups A, B, C and D Union officials -> covered; section 20 routing differs

Former functionaries -> only conduct during covered capacity

Parliament-created / Central-controlled / Central-financed bodies -> conditional coverage

Other societies/associations/trusts:

 clause (g): government finance + notified annual-income threshold

 clause (h): foreign-source donation > Rs 10 lakh/year or higher notified amount

Section 14(3): connected abettor/bribe-giver/bribe-taker/conspirator may be reached

TRAP: this is not jurisdiction over every private person.

[5/12] PRIME MINISTER AND PARLIAMENTARY PRIVILEGE

PM INCLUDED, BUT:

excluded subjects = international relations | external/internal security
| public order | atomic energy | space

full bench considers initiation

>= two-thirds of Members approve

inquiry in camera

if dismissed, inquiry records not published/made available

MP RULE:

section 14(2) preserves Article 105(2) for speech/vote in Parliament

SITA SOREN (2024): bribery itself is not protected by Articles 105(2)/194(2)

TRAP: bribery immunity was rejected; legislative privilege was not abolished.

[6/12] COMPLAINT AND PRELIMINARY INQUIRY

Complaint = prescribed allegation of a PC Act offence by covered public servant

Complaint Rules 2020 -> Form I + identity + affidavit + particulars + annexures

Registry scrutiny -> form | jurisdiction | limitation | defects

Section 20 choice:

- preliminary inquiry to test prima facie case

- OR investigation where prima facie case exists, after explanation

PI report: within 60 days from reference

PI ordinarily: 90 days + further 90 days for recorded reasons

>=3-Member bench + hearing -> investigate | departmental/other action | close

TRAP: filing defect, closure and false complaint are three different conclusions.

[7/12] INVESTIGATION, SANCTION, PROSECUTION AND TRIAL

Investigation by CBI/DSPE or other agency

- > 6 months from order

- > extension <=6 months at a time, reasons recorded

Agency report -> jurisdictional court + copy to Lokpal

>=3-Member bench + comments -> charge-sheet/sanction | closure | departmental action

Section 23: Lokpal sanction in section 20 route, subject to constitutional-office limit

Section 24: special route after findings against PM, Union Minister or MP

Section 12 Prosecution Wing / agency -> Special Court

Section 35 trial target: 1 year; 3-month reasoned extensions; total <=2 years

TRAP: sanction or charge-sheet is not conviction.

[8/12] INQUIRY WING, CVC AND CBI/DSPE

Inquiry Wing (s.11) -> preliminary inquiry, not police trial

Prosecution Wing (s.12) -> files/conducts prosecution when directed

CVC route under s.20:

Groups A/B -> preliminary report returns to Lokpal

Groups C/D -> CVC Act route

DSPE/CBI under s.25:

superintendence/direction only for Lokpal-referred matters

no direction to investigate/dispose in a particular manner

referred-case investigating officer transfer needs Lokpal approval

CV0 = departmental vigilance node; not CVC, CBI, prosecutor or court.

[9/12] SEARCH, ATTACHMENT, CONFISCATION AND SAFEGUARDS

Section 26 -> Lokpal may authorise entrusted agency to search/seize

Section 27 -> specified civil-court powers for inquiry

Section 29 -> written reasons + suspected corruption proceeds + concealment risk
-> provisional attachment <=90 days -> sealed material to Special Court

Section 30 -> Prosecution Wing application within 30 days -> court confirmation
acquittal -> restoration with accrued benefits, subject to court order
conviction -> relatable proceeds confiscated and vest in Union

Section 31 -> Special Court interim confiscation; return/value + 5% interest if reversed

TRAP: Lokpal cannot finally confiscate property by administrative declaration.

[10/12] ASSETS, FALSE COMPLAINTS, LIMITATION AND ACCOUNTABILITY

Section 44 after 2016 substitution:

every public servant declares assets/liabilities in prescribed form and manner

Section 45:

conditional rebuttable presumption for wilful non-declaration/misleading information

Section 46:

false AND frivolous or vexatious complaint -> Special Court process

up to 1 year imprisonment + fine up to Rs 1 lakh; compensation/costs possible

good-faith complaint protected

Section 53: complaint after 7 years from alleged offence -> no inquiry/investigation

Sections 13, 40-43, 48:

charged expenditure | budget/grants | CAG audit | annual report to Parliament.

[11/12] LOKAYUKTAS AND FEDERAL VARIATION

Section 63:

every State to establish Lokayukta, if absent, by State law within one year

NO UNIFORM NATIONAL DESIGN for:

composition | appointment | jurisdiction | tenure | removal

suo-motu power | investigation | prosecution | recommendation effect

Maharashtra 1971 -> historical early State inquiry/report model

Karnataka 1984 -> distinct Lokayukta/Upalokayukta investigation/prosecution design

TRAP: never transplant Lokpal's eight-member bench or five-person selection panel to States

REFORM: model minimum safeguards can coexist with State legislative choice.

[12/12] INSTITUTIONAL FIREWALL, TRAPS AND ANSWER SPINE

Lokpal -> complaint routing, referred-case supervision, sanction/directions

CVC -> vigilance advice + specified preliminary inquiries

CVO -> departmental vigilance and disciplinary coordination

CBI/DSPE -> criminal investigation

Prosecutor/Prosecution Wing -> presents case

Special Court -> attachment control, trial, conviction/acquittal/sentence

CAG -> public-account audit | CIC -> RTI disclosure/appeals | courts -> judicial review

NEVER WRITE:

- constitutional Lokpal | PM wholly immune | all private persons covered

- all CBI cases controlled | every official automatically dismissed | Lokpal convicts

MAINS VERDICT:

- broad statutory reach + procedural safeguards, but effectiveness depends on timely

- appointments, staffed capacity, agency independence, reasoned transparency and federal fit.